

The complaint

Miss G has complained about Aviva Insurance Limited's decision to reject a claim she made for storm damage under her home and buildings insurance policy.

What happened

Miss G reported damage to her home following a storm in December 2020. Aviva instructed a loss adjuster (LA) to inspect the damage as part of Miss G's claim. The LA said that while storm conditions occurred at the time, the damage was caused as a result of poor design of the roof and materials used. As Aviva's policy excluded cover in these circumstances, it rejected Miss G's claim for storm damage – but it said it could deal with some damage to tiles on the single storey roof from the double storey roof above as a result of falling debris under the Accidental Damage section of the policy.

Miss G was unhappy with Aviva's decision and so it agreed for an independent assessor to inspect Miss G's roof. They came to the same conclusion as the LA. So Aviva didn't change its decision.

Miss G asked us to look at her complaint. Our investigator thought in light of the information from the LA and the independent assessor, Aviva had acted reasonably.

Miss G doesn't agree. In summary she says that the area of damage which the two assessors focused on isn't related to her claim for storm damage: she says previous repairs were carried out to repointing of two valleys on the lower roof. Miss G says the damage she is claiming for is to the verges at the other end of the rows of tiles on the upper roof.

Miss G says that there were several properties in her road which were damaged by the same storm and had claims accepted by their insurers, including Aviva.

Miss G says a number of contractors have advised her that there was no fault with the installation of the verge tiles – in fact these are designed to be held by the weight of the tiles above, with fixings on every 2nd or 3rd row.

So Miss G wants an ombudsman to decide.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

As the investigator explained, we ask three questions in order to consider if an insurer has fairly declined a claim for storm damage. These are:

- Do we agree that storm conditions occurred on or around the date the damage is said to have happened?

- If so, is the damage being claimed for consistent with damage that a storm typically causes? and;
- Were storm conditions the main cause of the damage?

If the answer to all these questions is 'yes' then the claim is likely to succeed. But, if the answer to any of the above questions is 'no' - the claim for storm damage is unlikely to be covered.

I can only consider the individual circumstances of Miss G's claim against Aviva.

Aviva has accepted that storm conditions occurred around the time when the damage occurred, so this isn't in dispute.

I think it's possible that the damage being claimed for is consistent with damage that a storm typically causes. However, I don't think there is enough evidence to show that storm conditions were the main cause of the damage.

Aviva instructed a LA to inspect the damage to Miss G's roof. I appreciate that the LA and the independent assessor who visited commented on damage to other areas of the roof that had previous repairs which Miss G says she isn't claiming for.

I've also looked at the picture of Miss G's house provided by her where she helpfully points out the areas of damage she says were caused by a storm - and where previous repairs have been done. Colour coded arrows point to repairs carried out to both the double and single storey roof.

Key comments from the independent assessor are that repointing repairs carried out four years before were done by cementing over existing mortar rather than removing the existing mortar first. The assessor found that the original construction of the verge tiles wasn't adequate – including the double storey roof and the single storey roof. They concluded that although storm conditions had occurred, the damage wouldn't have occurred but for the existence of the poor original construction and fitting of the verge tiles.

Miss G's policy with Aviva excludes cover for claims where the damage is caused by: *“faulty workmanship, defective design or the use of defective materials”*

So from the information available, I don't think Aviva's decision to reject Miss G's claim for storm damage was unreasonable. I think it properly considered the claim. It accepted a claim for accidental damage caused by falling tiles onto the single storey roof. I haven't seen any evidence of equal weight to contradict the LA and assessor's findings for Aviva to reconsider its decision.

I understand Miss G will be disappointed, but for these reasons I'm not upholding her complaint.

My final decision

My final decision is that I don't uphold this complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Miss G to accept or reject my decision before 26 January 2022.

Geraldine Newbold
Ombudsman

